



(Don't Write anything in this Area)

Q8. (a) Describe the problems of Universal definition of marriage. (15 marks)

As per Herskovitz; Marriage is the union between a Man & a woman & children born to them are legitimate offspring's of couple.

Problem with such definition :-

① union between a man & a woman :-

⇒ Female - Female Nayee marriage's

(check)

Agande

⇒ Ghost marriage's; Polygamy / Polygyny

⇒ Sologamy marriage (Gujarat Case)

no need to mention not an accepted practice

⇒ Recent marriage of Mexican Mayor Victor Hugo with an alligator (2022)

⇒ Bantu people marrying with a Cattle.

⇒ Male-Male marriages (Gay relations)

② Legitimacy of the offspring's :-

→ Legitimacy to child should be social approval; not legal one.

e.g. In Yoruba Tribe of Africa; a woman needs to have kid with husband's relative for legitimacy to their own kids.

~~Kathleen~~ ② Definition of legitimacy by Malinowski :-

Marriage is a relation such that women gets socially approved husband and children get socially approved father. Such definition only defines what is legitimate, but falls short of defining nature of marriage. *(explain clearly)*
(you may add example here)

③ Kathleen Gough after studying Nayars of Kerala gave following definition:-

Marriage is a union between a woman

and one or more individuals such that the children born to women; not prohibited by rules of relationship; are given full birth rights available to other individuals of the society.

Exceptions :-

- Bantu people marrying Cattle.
- Male-Male marriages.
- Sologamy.

Hence, from the above discussion's we can conclude that ~~we~~ although marriage is a universal institution; ~~eg~~ but universal definition of marriage is not possible due to varying needs in different societies from the institution of marriage.

8.5

after writing this
you may conclude
with working
at definition of
marriage